

Four scopes encoded under the current principles: data espionage, interception, preparation, handling · the §202a(2) data definition authored once and consumed by name across the chapter · the §202c(2) repentance reference and the §202d(3) duty exemption live per the markup

`{Variable}` input · `[Computable]` act / derived · `«if ... end if»` condition · ~~`struck`~~ excluded · word-for-word dissection; the law is reconstructable from the substrate

§202a · Data espionage

UnauthorisedDataAccess · provenance StGB 202a · (1)-(2) encoded; penalty struck

SOURCE (ENGLISH, UNOFFICIAL)

(1) Whoever, without authorisation, obtains access for himself or another to data which are not intended for him and are specially secured against unauthorised access, by overcoming the access protection, shall be punished with imprisonment for up to three years or a fine. (2) Data within the meaning of paragraph 1 are only such as are stored or transmitted electronically, magnetically or otherwise in a manner not directly perceivable.

OPEROME MARKUP – ORIGINAL TEXT ENCODED

`«if UnauthorisedDataAccess is true»`(1) `{Actor}` who, `«if {WithoutAuthorisation} is true»`without authorisation `«end if»`, obtains access `«if {ObtainsAccessForSelf} is true»`for `{Actor}` `«end if»` `«if {ObtainsAccessForAnother} is true»`or another `«end if»` to data which are `«if {DataNotIntendedForActor} is true»`not intended for `{Actor}` `«end if»` and are `«if {SpeciallySecured} is true»`specially secured against unauthorised access `«end if»`, by `«if {OvercomesAccessProtection} is true»`overcoming the access protection `«end if»` ~~shall be punished with imprisonment for up to three years or a fine.~~ `«if [ProtectedData] is true»`(2) Data within the meaning of paragraph 1 are only such as are `«if {StoredNonPerceivably} is true»`stored `«end if»` `«if {TransmittedNonPerceivably} is true»`or transmitted `«end if»` electronically, magnetically or otherwise in a manner not directly perceivable `«end if»`.`«end if»`

ANNEXES

COMPUTABLES

`[ProtectedData]` = `StoredNonPerceivably` is true or `TransmittedNonPerceivably` is true

`[UnauthorisedDataAccess]` = `WithoutAuthorisation` is true and (`ObtainsAccessForSelf` is true or `ObtainsAccessForAnother` is true) and `DataNotIntendedForActor` is true and `SpeciallySecured` is true and `OvercomesAccessProtection` is true and `ProtectedData` is true

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
UDA-R01	ACT	Actor		<code>ObtainsAccessForSelf</code> is true
UDA-R02	ACT	Actor		<code>ObtainsAccessForAnother</code> is true
UDA-R03	CONDITION	None		<code>WithoutAuthorisation</code> is true
UDA-R04	CONDITION	None		<code>DataNotIntendedForActor</code> is true
UDA-R05	CONDITION	None		<code>SpeciallySecured</code> is true
UDA-R06	ACT	Actor		<code>OvercomesAccessProtection</code> is true
UDA-R07	CONDITION	None		<code>StoredNonPerceivably</code> is true
UDA-R08	CONDITION	None		<code>TransmittedNonPerceivably</code> is true
UDA-R00	CONDITION	None	definition (paragraph 2, live): data within the meaning of paragraph 1 are only such as are stored or transmitted electronically, magnetically or otherwise in a manner not directly perceivable; authored as <code>[ProtectedData]</code> and consumed here and, per the express references to Section 202a(2), by the 202b, 202c and 202d scopes	<code>ProtectedData</code> is true
UDA-P0	PROHIBITION	Actor	not realise	not <code>UnauthorisedDataAccess</code>

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Whoever	Tätersubjekt	<code>{Actor}</code>	–	in scope
<code>{Actor}</code> obtains access to the data for <code>{Actor}</code>	Merkmal	<code>{ObtainsAccessForSelf}</code>	UDA-R01	is true
<code>{Actor}</code> obtains access to the data for another person	Merkmal	<code>{ObtainsAccessForAnother}</code>	UDA-R02	is true
<code>{Actor}</code> acts without authorisation	Merkmal	<code>{WithoutAuthorisation}</code>	UDA-R03	is true
the data are not intended for <code>{Actor}</code>	Merkmal	<code>{DataNotIntendedForActor}</code>	UDA-R04	is true
the data are specially secured against unauthorised access	Merkmal	<code>{SpeciallySecured}</code>	UDA-R05	is true
<code>{Actor}</code> overcomes the access protection	Merkmal	<code>{OvercomesAccessProtection}</code>	UDA-R06	is true
the data are stored in a manner not directly perceivable	Merkmal	<code>{StoredNonPerceivably}</code>	UDA-R07	is true
the data are transmitted in a manner not directly perceivable	Merkmal	<code>{TransmittedNonPerceivably}</code>	UDA-R08	is true
data definition (paragraph 2)	Definition	<code>[ProtectedData]</code>	UDA-R00	authored

penalty	sanction	– excluded –	–	struck
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VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{DataNotIntendedForActor}	Boolean	true / false / unknown	Session	the data are not intended for {Actor}
{ObtainsAccessForAnother}	Boolean	true / false / unknown	Session	{Actor} obtains access to the data for another person
{ObtainsAccessForSelf}	Boolean	true / false / unknown	Session	{Actor} obtains access to the data for {Actor}
{OvercomesAccessProtection}	Boolean	true / false / unknown	Session	{Actor} overcomes the access protection
{SpeciallySecured}	Boolean	true / false / unknown	Session	the data are specially secured against unauthorised access
{StoredNonPerceivably}	Boolean	true / false / unknown	Session	the data are stored in a manner not directly perceivable
{TransmittedNonPerceivably}	Boolean	true / false / unknown	Session	the data are transmitted in a manner not directly perceivable
{WithoutAuthorisation}	Boolean	true / false / unknown	Session	{Actor} acts without authorisation

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: {Actor} acts without authorisation and ({Actor} obtains access to the data for {Actor} or {Actor} obtains access to the data for another person) and the data are not intended for {Actor} and the data are specially secured against unauthorised access and {Actor} overcomes the access protection and (the data are stored in a manner not directly perceivable or the data are transmitted in a manner not directly perceivable).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[ProtectedData]	StoredNonPerceivably, TransmittedNonPerceivably	false	Recomputes when any input changes; propagates into the composite.
[UnauthorisedDataAccess]	WithoutAuthorisation, ObtainsAccessForSelf, ObtainsAccessForAnother, DataNotIntendedForActor, SpeciallySecured, OvercomesAccessProtection, ProtectedData	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (UDA-P0)	[UnauthorisedDataAccess]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- └ {Actor}
- └ {DataNotIntendedForActor}
- └ {ObtainsAccessForAnother}
- └ {ObtainsAccessForSelf}
- └ {OvercomesAccessProtection}
- └ {SpeciallySecured}
- └ {StoredNonPerceivably}
- └ {TransmittedNonPerceivably}
- └ {WithoutAuthorisation}

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PHASE 2: evaluate act / intermediate computables

- └ [ProtectedData] = StoredNonPerceivably is true or TransmittedNonPerceivably is true

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PHASE 3: evaluate the objective conditions

- └ [UnauthorisedDataAccess] = WithoutAuthorisation is true and (ObtainsAccessForSelf is true or ObtainsAccessForAnother is true) and DataNotIntendedForActor is true and SpeciallySecured is true and OvercomesAccessProtection is true and ProtectedData is true

↓

VERDICT (PrimeRule)

- └ [UnauthorisedDataAccess] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
- └ [UnauthorisedDataAccess] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [UnauthorisedDataAccess] depends on [ProtectedData]; none refer back to [UnauthorisedDataAccess]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{DataNotIntendedForActor}	Element/Datum: the data are not intended for {Actor}.?	Boolean
Q3	Session	{ObtainsAccessForAnother}	Element/Datum: {Actor} obtains access to the data for another person.?	Boolean
Q4	Session	{ObtainsAccessForSelf}	Element/Datum: {Actor} obtains access to the data for {Actor}.?	Boolean
Q5	Session	{OvercomesAccessProtection}	Element/Datum: {Actor} overcomes the access protection.?	Boolean
Q6	Session	{SpeciallySecured}	Element/Datum: the data are specially secured against unauthorised access.?	Boolean
Q7	Session	{StoredNonPerceivably}	Element/Datum: the data are stored in a manner not directly perceivable.?	Boolean
Q8	Session	{TransmittedNonPerceivably}	Element/Datum: the data are transmitted in a manner not directly perceivable.?	Boolean
Q9	Session	{WithoutAuthorisation}	Element/Datum: {Actor} acts without authorisation.?	Boolean

SCOPE Both paragraphs live; only the penalty struck. Coordinated objects gated individually, the definition lifted to **[ProtectedData]** as a separate rule.

DEFINITION CHAIN **[ProtectedData]** is consumed by the 202b, 202c and 202d scopes per their express references to Section 202a(2); cross-scope resolution by name in the carrier, subject to the standing runtime caveat.

TREATMENT §202a is Operomise-tagged; §202 is Excluded.

§202b · Interception of data

InterceptionOfData · provenance StGB 202b · whole encoded; penalty struck

SOURCE (ENGLISH, UNOFFICIAL)

Whoever, without authorisation, applying technical means, obtains for himself or another data not intended for him (Section 202a(2)) from a non-public data transmission or from the electromagnetic emission of a data-processing installation, shall be punished with imprisonment for up to two years or a fine, unless the act is subject to a more severe penalty under other provisions.

OPEROME MARKUP - ORIGINAL TEXT ENCODED

«if InterceptionOfData is true»{Actor} who, **«if {WithoutAuthorisation} is true»**without authorisation **«end if»**, **«if {UsingTechnicalMeans} is true»**applying technical means **«end if»**, obtains **«if {ObtainsForSelf} is true»**for **{Actor}** **«end if»** **«if {ObtainsForAnother} is true»**or another **«end if»** **«if {DataNotIntendedForActor} is true»**data not intended for **{Actor}** **«end if»** **«if [ProtectedData] is true»**(Section 202a(2)) **«end if»** **«if {FromNonPublicTransmission} is true»**from a non-public data transmission **«end if»** **«if {FromElectromagneticEmission} is true»**or from the electromagnetic emission of a data-processing installation **«end if»** ~~shall be punished with imprisonment for up to two years or a fine, unless the act is subject to a more severe penalty under other provisions.~~**«end if»**

ANNEXES

COMPUTABLES

[InterceptionOfData] = **WithoutAuthorisation** is true and **UsingTechnicalMeans** is true and (**ObtainsForSelf** is true or **ObtainsForAnother** is true) and **DataNotIntendedForActor** is true and **ProtectedData** is true and (**FromNonPublicTransmission** is true or **FromElectromagneticEmission** is true)

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
I0D-R01	ACT	Actor		ObtainsForSelf is true
I0D-R02	ACT	Actor		ObtainsForAnother is true
I0D-R03	CONDITION	None		WithoutAuthorisation is true
I0D-R04	ACT	Actor		UsingTechnicalMeans is true
I0D-R05	CONDITION	None		DataNotIntendedForActor is true
I0D-R06	CONDITION	None		FromNonPublicTransmission is true
I0D-R07	CONDITION	None		FromElectromagneticEmission is true
I0D-R80	CONDITION	None	cross-scope reference: the data element resolves by name against [ProtectedData] of the Section 202a scope, per the express statutory reference to Section 202a(2)	ProtectedData is true
I0D-P0	PROHIBITION	Actor	not realise	not InterceptionOfData

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Whoever	Tätersubjekt	{Actor}	–	in scope
data (Section 202a(2))	Merkmal (cross-scope)	[ProtectedData]	I0D-R80	resolves against the §202a scope
{Actor} obtains the data for {Actor}	Merkmal	{ObtainsForSelf}	I0D-R01	is true
{Actor} obtains the data for another person	Merkmal	{ObtainsForAnother}	I0D-R02	is true
{Actor} acts without authorisation	Merkmal	{WithoutAuthorisation}	I0D-R03	is true
{Actor} applies technical means	Merkmal	{UsingTechnicalMeans}	I0D-R04	is true
the data are not intended for {Actor}	Merkmal	{DataNotIntendedForActor}	I0D-R05	is true
from a non-public data transmission	Merkmal	{FromNonPublicTransmission}	I0D-R06	is true
from the electromagnetic emission of a data-processing installation	Merkmal	{FromElectromagneticEmission}	I0D-R07	is true
penalty with subsidiarity	sanction	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{DataNotIntendedForActor}	Boolean	true / false / unknown	Session	the data are not intended for {Actor}
{FromElectromagneticEmission}	Boolean	true / false / unknown	Session	from the electromagnetic emission of a data-processing installation
{FromNonPublicTransmission}	Boolean	true / false / unknown	Session	from a non-public data transmission
{ObtainsForAnother}	Boolean	true / false / unknown	Session	{Actor} obtains the data for another person

<code>{ObtainsForSelf}</code>	Boolean	true / false / unknown	Session	<code>{Actor}</code> obtains the data for <code>{Actor}</code>
<code>{ProtectedData}</code>	Boolean	true / false / unknown	Session	the data satisfy the Section 202a(2) definition
<code>{UsingTechnicalMeans}</code>	Boolean	true / false / unknown	Session	<code>{Actor}</code> applies technical means
<code>{WithoutAuthorisation}</code>	Boolean	true / false / unknown	Session	<code>{Actor}</code> acts without authorisation

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: `{Actor}` acts without authorisation and `{Actor}` applies technical means and (`{Actor}` obtains the data for `{Actor}` or `{Actor}` obtains the data for another person) and the data are not intended for `{Actor}` and the data satisfy the Section 202a(2) definition and (from a non-public data transmission or from the electromagnetic emission of a data-processing installation).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
<code>[InterceptionOfData]</code>	<code>WithoutAuthorisation</code> , <code>UsingTechnicalMeans</code> , <code>ObtainsForSelf</code> , <code>ObtainsForAnother</code> , <code>DataNotIntendedForActor</code> , <code>ProtectedData</code> , <code>FromNonPublicTransmission</code> , <code>FromElectromagneticEmission</code>	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (IOD-P0)	<code>[InterceptionOfData]</code>	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- `{Actor}`
- `{DataNotIntendedForActor}`
- `{FromElectromagneticEmission}`
- `{FromNonPublicTransmission}`
- `{ObtainsForAnother}`
- `{ObtainsForSelf}`
- `{ProtectedData}`
- `{UsingTechnicalMeans}`
- `{WithoutAuthorisation}`

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PHASE 2: evaluate act / intermediate computables

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PHASE 3: evaluate the objective conditions

- `[InterceptionOfData]` = `WithoutAuthorisation` is true and `UsingTechnicalMeans` is true and (`ObtainsForSelf` is true or `ObtainsForAnother` is true) and `DataNotIntendedForActor` is true and `ProtectedData` is true and (`FromNonPublicTransmission` is true or `FromElectromagneticEmission` is true)

↓

VERDICT (PrimeRule)

- `[InterceptionOfData]` is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
- `[InterceptionOfData]` is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- `[InterceptionOfData]` depends on ; none refer back to `[InterceptionOfData]`. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	<code>{Actor}</code>	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	<code>{DataNotIntendedForActor}</code>	Element/Datum: the data are not intended for <code>{Actor}</code> .?	Boolean
Q3	Session	<code>{FromElectromagneticEmission}</code>	Element/Datum: from the electromagnetic emission of a data-processing installation.?	Boolean
Q4	Session	<code>{FromNonPublicTransmission}</code>	Element/Datum: from a non-public data transmission.?	Boolean
Q5	Session	<code>{ObtainsForAnother}</code>	Element/Datum: <code>{Actor}</code> obtains the data for another person.?	Boolean
Q6	Session	<code>{ObtainsForSelf}</code>	Element/Datum: <code>{Actor}</code> obtains the data for <code>{Actor}</code> .?	Boolean
Q7	Session	<code>{ProtectedData}</code>	Element/Datum: the data satisfy the Section 202a(2) definition.?	Boolean
Q8	Session	<code>{UsingTechnicalMeans}</code>	Element/Datum: <code>{Actor}</code> applies technical means.?	Boolean
Q9	Session	<code>{WithoutAuthorisation}</code>	Element/Datum: <code>{Actor}</code> acts without authorisation.?	Boolean

FLAGS

SCOPE The single sentence; the penalty struck including its subsidiarity clause, the §107b treatment.

CROSS-SCOPE REFERENCE The data element resolves by name against `[ProtectedData]` of the §202a scope, rule IOD-R80.

TREATMENT §202b is Operomise-tagged.

(1) Whoever prepares an offence under Section 202a or Section 202b by producing, obtaining for himself or another, selling, leaving to another, disseminating or otherwise making accessible 1. passwords or other security codes enabling access to data (Section 202a(2)), or 2. computer programs whose purpose is the commission of such an offence, shall be punished with imprisonment for up to two years or a fine. (2) Section 149(2) and (3) applies correspondingly.

«if PreparationOfDataAccess is true»(1) {Actor} who «if {PreparesDataOffence} is true»prepares an offence under Section 202a or Section 202b «end if» by «if {Produces} is true»producing «end if» «if {ObtainsForSelf} is true», obtaining for {Actor} «end if» «if {ObtainsForAnother} is true»or another «end if» «if {Sells} is true», selling «end if» «if {LeavesToAnother} is true», leaving to another «end if» «if {Disseminates} is true», disseminating «end if» «if {MakesAccessible} is true»or otherwise making accessible «end if» 1. «if {Passwords} is true»passwords «end if» «if {OtherSecurityCodes} is true»or other security codes enabling access to data (Section 202a(2)) «end if», or 2. «if {PurposeBuiltPrograms} is true»computer programs whose purpose is the commission of such an offence «end if» ~~shall be punished with imprisonment for up to two years or a fine.~~ (2) Section 149(2) and (3) applies correspondingly.«end if»

ANNEXES

COMPUTABLES

[Object] = Passwords is true or OtherSecurityCodes is true or PurposeBuiltPrograms is true

[Conduct] = Produces is true or ObtainsForSelf is true or ObtainsForAnother is true or Sells is true or LeavesToAnother is true or Disseminates is true or MakesAccessible is true

[PreparationOfDataAccess] = PreparesDataOffence is true and Object is true and Conduct is true

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
PDA-R01	ACT	Actor		PreparesDataOffence is true
PDA-R02	CONDITION	None		Passwords is true
PDA-R03	CONDITION	None		OtherSecurityCodes is true
PDA-R04	CONDITION	None		PurposeBuiltPrograms is true
PDA-R05	ACT	Actor		Produces is true
PDA-R06	ACT	Actor		ObtainsForSelf is true
PDA-R07	ACT	Actor		ObtainsForAnother is true
PDA-R08	ACT	Actor		Sells is true
PDA-R09	ACT	Actor		LeavesToAnother is true
PDA-R10	ACT	Actor		Disseminates is true
PDA-R11	ACT	Actor		MakesAccessible is true
PDA-R80	CONDITION	None	exception (paragraph 2, live): Section 149(2) and (3) applies correspondingly, the active-repentance rule for preparation offences; Section 149 stands outside the corpus, so whether its conditions are met resolves as an input; kept live per the markup, the opposite treatment to the struck repentance rules of Section 129(7), recorded as an editorial decision	PreparationOfDataAccess is true
PDA-P0	PROHIBITION	Actor	not realise	not PreparationOfDataAccess

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Whoever	Tätersubjekt	{Actor}	–	in scope
{Actor} prepares a data-access offence	Merkmal	{PreparesDataOffence}	PDA-R01	is true
passwords enabling access to data (Section 202a(2))	Merkmal	{Passwords}	PDA-R02	is true
other security codes enabling access to data (Section 202a(2))	Merkmal	{OtherSecurityCodes}	PDA-R03	is true
computer programs whose purpose is the commission of such an offence	Merkmal	{PurposeBuiltPrograms}	PDA-R04	is true
{Actor} produces the object	Merkmal	{Produces}	PDA-R05	is true
{Actor} obtains the object for {Actor}	Merkmal	{ObtainsForSelf}	PDA-R06	is true
{Actor} obtains the object for another person	Merkmal	{ObtainsForAnother}	PDA-R07	is true
{Actor} sells the object	Merkmal	{Sells}	PDA-R08	is true
{Actor} leaves the object to another person	Merkmal	{LeavesToAnother}	PDA-R09	is true
{Actor} disseminates the object	Merkmal	{Disseminates}	PDA-R10	is true
{Actor} otherwise makes the object accessible	Merkmal	{MakesAccessible}	PDA-R11	is true
active repentance (Section 149(2),(3), live)	exception	– input –	PDA-R80	resolves externally
penalty	sanction	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{Disseminates}	Boolean	true / false / unknown	Session	{Actor} disseminates the object
{LeavesToAnother}	Boolean	true / false / unknown	Session	{Actor} leaves the object to another person
{MakesAccessible}	Boolean	true / false / unknown	Session	{Actor} otherwise makes the object accessible
{ObtainsForAnother}	Boolean	true / false / unknown	Session	{Actor} obtains the object for another person
{ObtainsForSelf}	Boolean	true / false / unknown	Session	{Actor} obtains the object for {Actor}
{OtherSecurityCodes}	Boolean	true / false / unknown	Session	other security codes enabling access to data (Section 202a(2))
{Passwords}	Boolean	true / false / unknown	Session	passwords enabling access to data (Section 202a(2))
{PreparesDataOffence}	Boolean	true / false / unknown	Session	{Actor} prepares a data-access offence
{Produces}	Boolean	true / false / unknown	Session	{Actor} produces the object
{PurposeBuiltPrograms}	Boolean	true / false / unknown	Session	computer programs whose purpose is the commission of such an offence
{Sells}	Boolean	true / false / unknown	Session	{Actor} sells the object

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: {Actor} prepares a data-access offence and (passwords enabling access to data (Section 202a(2)) or other security codes enabling access to data (Section 202a(2)) or computer programs whose purpose is the commission of such an offence) and ({Actor} produces the object or {Actor} obtains the object for {Actor} or {Actor} obtains the object for another person or {Actor} sells the object or {Actor} leaves the object to another person or {Actor} disseminates the object or {Actor} otherwise makes the object accessible).

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[Object]	Passwords, OtherSecurityCodes, PurposeBuiltPrograms	false	Recomputes when any input changes; propagates into the composite.
[Conduct]	Produces, ObtainsForSelf, ObtainsForAnother, Sells, LeavesToAnother, Disseminates, MakesAccessible	false	Recomputes when any input changes; propagates into the composite.
[PreparationOfDataAccess]	PreparesDataOffence, Object, Conduct	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (PDA-P0)	[PreparationOfDataAccess]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

- └ {Actor}
- └ {Disseminates}
- └ {LeavesToAnother}
- └ {MakesAccessible}
- └ {ObtainsForAnother}
- └ {ObtainsForSelf}
- └ {OtherSecurityCodes}
- └ {Passwords}
- └ {PreparesDataOffence}
- └ {Produces}
- └ {PurposeBuiltPrograms}
- └ {Sells}

↓

PHASE 2: evaluate act / intermediate computables

- └ [Object] = Passwords is true or OtherSecurityCodes is true or PurposeBuiltPrograms is true
- └ [Conduct] = Produces is true or ObtainsForSelf is true or ObtainsForAnother is true or Sells is true or LeavesToAnother is true or Disseminates is true or MakesAccessible is true

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PHASE 3: evaluate the objective conditions

- └ [PreparationOfDataAccess] = PreparesDataOffence is true and Object is true and Conduct is true

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VERDICT (PrimeRule)

- └ [PreparationOfDataAccess] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)
- └ [PreparationOfDataAccess] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries. This operome is itself a preparation offence. It references [UnauthorisedDataAccess] and [InterceptionOfData] by name as the prepared offences but does not evaluate them; there is no re-entry into those operomes.

CIRCULARITY CHECK

- [PreparationOfDataAccess] depends on [Object], [Conduct]; none refer back to [PreparationOfDataAccess]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
Q1	Session	{Actor}	Who or what is the actor? Any natural person, legal person, or non-human system. Canonical home: PrimeRule.?	Reference
Q2	Session	{Disseminates}	Element/Datum: {Actor} disseminates the object.?	Boolean
Q3	Session	{LeavesToAnother}	Element/Datum: {Actor} leaves the object to another person.?	Boolean
Q4	Session	{MakesAccessible}	Element/Datum: {Actor} otherwise makes the object accessible.?	Boolean

Q5	Session	{ObtainsForAnother}	Element/Datum: {Actor} obtains the object for another person.?	Boolean
Q6	Session	{ObtainsForSelf}	Element/Datum: {Actor} obtains the object for {Actor}.?	Boolean
Q7	Session	{OtherSecurityCodes}	Element/Datum: other security codes enabling access to data (Section 202a(2)).?	Boolean
Q8	Session	{Passwords}	Element/Datum: passwords enabling access to data (Section 202a(2)).?	Boolean
Q9	Session	{PreparesDataOffence}	Element/Datum: {Actor} prepares a data-access offence.?	Boolean
Q10	Session	{Produces}	Element/Datum: {Actor} produces the object.?	Boolean
Q11	Session	{PurposeBuiltPrograms}	Element/Datum: computer programs whose purpose is the commission of such an offence.?	Boolean
Q12	Session	{Sells}	Element/Datum: {Actor} sells the object.?	Boolean

FLAGS

- SCOPE** Both paragraphs live; only the penalty struck. The dual-use boundary is carried by **{PurposeBuiltPrograms}**: the program's purpose, not its capability, the settled reading of §202c.
- LIVE REPENTANCE REFERENCE (RECORDED)** (2) keeps the §149(2),(3) reference live where §129(7)'s repentance rule was struck; §149 is outside the corpus and resolves as input. Followed as marked and recorded as an editorial decision.
- CROSS-SCOPE REFERENCES** The prepared offences and the data definition resolve against the §202a and §202b scopes in this carrier.
- TREATMENT** §202c is Operomise-tagged.

§202d · Handling stolen data

HandlingUnlawfullyObtainedData · provenance StGB 202d · (1), (3) encoded; (2) struck

SOURCE (ENGLISH, UNOFFICIAL)

(1) Whoever procures for himself or another, leaves to another, disseminates or otherwise makes accessible data (Section 202a(2)) which are not generally accessible and which another obtained through an unlawful act, in order to enrich himself or a third party or to harm another, shall be punished with imprisonment for up to three years or a fine. (2) The penalty may not be more severe than the penalty threatened for the predicate act. (3) Paragraph 1 does not apply to acts which exclusively serve the fulfilment of lawful official or professional duties. These include in particular 1. acts of public officials or their agents by which data are to be fed exclusively into a taxation procedure, criminal proceedings or regulatory-offence proceedings, and 2. professional acts of the persons named in Section 53(1) sentence 1 number 5 of the Code of Criminal Procedure by which data are received, evaluated or published.

OPEROME MARKUP – ORIGINAL TEXT ENCODED

«if HandlingUnlawfullyObtainedData is true»(1) **{Actor}** who **«if {ProcuresForSelf} is true»**procures for **{Actor}** **«end if»** **«if {ProcuresForAnother} is true»**or another **«end if»** **«if {LeavesToAnother} is true»**, leaves to another **«end if»** **«if {Disseminates} is true»**, disseminates **«end if»** **«if {MakesAccessible} is true»**or otherwise makes accessible **«end if»** data **«if [ProtectedData] is true»**(Section 202a(2)) **«end if»** which are **«if {NotGenerallyAccessible} is true»**not generally accessible **«end if»** and which **«if {ObtainedByAnotherUnlawfully} is true»**another obtained through an unlawful act **«end if»**, in order **«if {IntentToEnrichSelf} is true»**to enrich **{Actor}** **«end if»** **«if {IntentToEnrichThirdParty} is true»**or a third party **«end if»** **«if {IntentToHarmAnother} is true»**or to harm another **«end if»** shall be punished with imprisonment for up to three years or a fine. (2) The penalty may not be more severe than the penalty threatened for the predicate act. **«if [LawfulDutyExemption] is false»**(3) Paragraph 1 does not apply to **«if {ExclusivelyLawfulDuties} is true»**acts which exclusively serve the fulfilment of lawful official or professional duties **«end if»**. These include in particular 1. acts of public officials or their agents by which data are to be fed exclusively into a taxation procedure, criminal proceedings or regulatory-offence proceedings, and 2. professional acts of the persons named in Section 53(1) sentence 1 number 5 of the Code of Criminal Procedure by which data are received, evaluated or published **«end if»**.**«end if»**

ANNEXES

COMPUTABLES

[Intent] = **IntentToEnrichSelf** is true or **IntentToEnrichThirdParty** is true or **IntentToHarmAnother** is true

[LawfulDutyExemption] = **ExclusivelyLawfulDuties** is true

[Conduct] = **ProcuresForSelf** is true or **ProcuresForAnother** is true or **LeavesToAnother** is true or **Disseminates** is true or **MakesAccessible** is true

[HandlingUnlawfullyObtainedData] = **ProtectedData** is true and **NotGenerallyAccessible** is true and **ObtainedByAnotherUnlawfully** is true and **Conduct** is true and **Intent** is true and not **LawfulDutyExemption**

BUSINESS RULES

ID	KIND	ACTOR	VERB / PREDICATE	BODY
HUD-R01	CONDITION	None		NotGenerallyAccessible is true
HUD-R02	CONDITION	None		ObtainedByAnotherUnlawfully is true
HUD-R03	ACT	Actor		ProcuresForSelf is true
HUD-R04	ACT	Actor		ProcuresForAnother is true
HUD-R05	ACT	Actor		LeavesToAnother is true
HUD-R06	ACT	Actor		Disseminates is true

HUD-R07	ACT	Actor		MakesAccessible is true
HUD-R08	ACT	Actor		IntentToEnrichSelf is true
HUD-R09	ACT	Actor		IntentToEnrichThirdParty is true
HUD-R10	ACT	Actor		IntentToHarmAnother is true
HUD-R11	CONDITION	None		ExclusivelyLawfulDuties is true
HUD-R00	CONDITION	None	cross-scope reference: the data element resolves by name against [ProtectedData] of the Section 202a scope, per the express statutory reference to Section 202a(2)	ProtectedData is true
HUD-R01	CONDITION	None	exemption (paragraph 3, live): paragraph 1 does not apply to acts exclusively serving the fulfilment of lawful official or professional duties; the two numbered illustrations (officials feeding data exclusively into taxation, criminal or regulatory proceedings; professional acts of the persons named in Section 53(1) sentence 1 no. 5 StPO receiving, evaluating or publishing data) stand as insbesondere illustrations under the general predicate, the Section 323c treatment; encoded as the separate negative [LawfulDutyExemption], never inside the legs	LawfulDutyExemption is true
HUD-P0	PROHIBITION	Actor	not realise	not HandlingUnlawfullyObtainedData

TATBESTAND DISSECTED TO THE MERKMAL

SOURCE PHRASE	DOCTRINAL ROLE	PRIMITIVE	RULE	REQUIRES
Whoever	Tätersubjekt	{Actor}	–	in scope
data (Section 202a(2))	Merkmal (cross-scope)	[ProtectedData]	HUD-R00	resolves against the §202a scope
the data are not generally accessible	Merkmal	{NotGenerallyAccessible}	HUD-R01	is true
another person obtained the data through an unlawful act	Merkmal	{ObtainedByAnotherUnlawfully}	HUD-R02	is true
{Actor} procures the data for {Actor}	Merkmal	{ProcuresForSelf}	HUD-R03	is true
{Actor} procures the data for another person	Merkmal	{ProcuresForAnother}	HUD-R04	is true
{Actor} leaves the data to another person	Merkmal	{LeavesToAnother}	HUD-R05	is true
{Actor} disseminates the data	Merkmal	{Disseminates}	HUD-R06	is true
{Actor} otherwise makes the data accessible	Merkmal	{MakesAccessible}	HUD-R07	is true
{Actor} acts in order to enrich {Actor}	Merkmal	{IntentToEnrichSelf}	HUD-R08	is true
{Actor} acts in order to enrich a third party	Merkmal	{IntentToEnrichThirdParty}	HUD-R09	is true
{Actor} acts in order to harm another person	Merkmal	{IntentToHarmAnother}	HUD-R10	is true
the act exclusively serves the fulfilment of lawful duties	Merkmal	{ExclusivelyLawfulDuties}	HUD-R11	is true
lawful-duties exemption (paragraph 3)	exemption	[LawfulDutyExemption]	HUD-R01	is false
(2) penalty cap	sanction	– excluded –	–	struck

VARIABLES APPENDIX

VARIABLE	INPUT	VALUES	CASCADE	SURFACE FORM (SOURCE WORDS)
{Actor}	Reference	–	Session	any person (the actor)
{Disseminates}	Boolean	true / false / unknown	Session	{Actor} disseminates the data
{ExclusivelyLawfulDuties}	Boolean	true / false / unknown	Session	the act exclusively serves the fulfilment of lawful duties
{IntentToEnrichSelf}	Boolean	true / false / unknown	Session	{Actor} acts in order to enrich {Actor}
{IntentToEnrichThirdParty}	Boolean	true / false / unknown	Session	{Actor} acts in order to enrich a third party
{IntentToHarmAnother}	Boolean	true / false / unknown	Session	{Actor} acts in order to harm another person
{LeavesToAnother}	Boolean	true / false / unknown	Session	{Actor} leaves the data to another person
{MakesAccessible}	Boolean	true / false / unknown	Session	{Actor} otherwise makes the data accessible
{NotGenerallyAccessible}	Boolean	true / false / unknown	Session	the data are not generally accessible
{ObtainedByAnotherUnlawfully}	Boolean	true / false / unknown	Session	another person obtained the data through an unlawful act
{ProcuresForAnother}	Boolean	true / false / unknown	Session	{Actor} procures the data for another person
{ProcuresForSelf}	Boolean	true / false / unknown	Session	{Actor} procures the data for {Actor}
{ProtectedData}	Boolean	true / false / unknown	Session	the data satisfy the Section 202a(2) definition

RECONSTRUCTION FROM THE SUBSTRATE

Committed by any person (the actor) who: the data satisfy the Section 202a(2) definition and the data are not generally accessible and another person obtained the data through an unlawful act and ({Actor} procures the data for {Actor} or {Actor} procures the data for another person or {Actor} leaves the data to another person or {Actor} disseminates the data or {Actor} otherwise makes the data accessible) and ({Actor} acts in order to enrich {Actor} or {Actor} acts in order to enrich a third party or {Actor} acts in order to harm another person) and not LawfulDutyExemption.

Assembled only from the variable surface forms (including the actor) and the computable structure carried in the XSD, not from the source column. It should read as the offence. This is the recoverability test: the law is reverse-derivable from the substrate.

DEPENDENT ASSESSMENTS (REACTIVE INVALIDATION)

ASSESSMENT	DEPENDS ON	INVALIDATION	TRIGGER EFFECT
[Intent]	IntentToEnrichSelf, IntentToEnrichThirdParty, IntentToHarmAnother	false	Recomputes when any input changes; propagates into the composite.
[LawfulDutyExemption]	ExclusivelyLawfulDuties	false	Recomputes when any input changes; propagates into the composite.

[Conduct]	ProcuresForSelf, ProcuresForAnother, LeavesToAnother, Disseminates, MakesAccessible	false	Recomputes when any input changes; propagates into the composite.
[HandlingUnlawfullyObtainedData]	ProtectedData, NotGenerallyAccessible, ObtainedByAnotherUnlawfully, Conduct, Intent, LawfulDutyExemption	false	Final composite. Re-evaluates on any input change; cannot resolve true while any input is unknown.
prohibition (HUD-P0)	[HandlingUnlawfullyObtainedData]	re-derives	The PrimeRule prohibition holds whenever the composite is true; re-derives on any change.

DECISION TREE

PHASE 1: gather inputs (Session)

{Actor}

{Disseminates}

{ExclusivelyLawfulDuties}

{IntentToEnrichSelf}

{IntentToEnrichThirdParty}

{IntentToHarmAnother}

{LeavesToAnother}

{MakesAccessible}

{NotGenerallyAccessible}

{ObtainedByAnotherUnlawfully}

{ProcuresForAnother}

{ProcuresForSelf}

{ProtectedData}

↓

PHASE 2: evaluate act / intermediate computables

[Intent] = IntentToEnrichSelf is true or IntentToEnrichThirdParty is true or IntentToHarmAnother is true

[LawfulDutyExemption] = ExclusivelyLawfulDuties is true

[Conduct] = ProcuresForSelf is true or ProcuresForAnother is true or LeavesToAnother is true or Disseminates is true or MakesAccessible is true

↓

PHASE 3: evaluate the objective conditions

[HandlingUnlawfullyObtainedData] = ProtectedData is true and NotGenerallyAccessible is true and ObtainedByAnotherUnlawfully is true and Conduct is true and Intent is true and not LawfulDutyExemption

↓

VERDICT (PrimeRule)

[HandlingUnlawfullyObtainedData] is true → objective conditions realised → conduct PROHIBITED (subject to permissions / exceptions)

[HandlingUnlawfullyObtainedData] is false → not realised

RECURSION / RE-ENTRY NOTES

No runtime re-entry. The operome is a single forward evaluation: inputs → act computable(s) → Tatbestand composite → prohibition verdict. Attempt and preparation, where the section provides for them, are separate operomes, not re-entries.

CIRCULARITY CHECK

- [HandlingUnlawfullyObtainedData] depends on [Intent], [LawfulDutyExemption], [Conduct]; none refer back to [HandlingUnlawfullyObtainedData]. No definitional cycle.
- Each computable reduces to input Booleans; the graph is a DAG and topologically sortable. Tristate is monotone: any unknown input holds the composite at unknown rather than forcing a verdict.

QUESTIONNAIRE

#	CASCADE	VARIABLE	QUESTION / PROMPT	INPUT
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Q2	Session	{Disseminates}	Element/Datum: {Actor} disseminates the data.?	Boolean
Q3	Session	{ExclusivelyLawfulDuties}	Element/Datum: the act exclusively serves the fulfilment of lawful duties.?	Boolean
Q4	Session	{IntentToEnrichSelf}	Element/Datum: {Actor} acts in order to enrich {Actor}.?	Boolean
Q5	Session	{IntentToEnrichThirdParty}	Element/Datum: {Actor} acts in order to enrich a third party.?	Boolean
Q6	Session	{IntentToHarmAnother}	Element/Datum: {Actor} acts in order to harm another person.?	Boolean
Q7	Session	{LeavesToAnother}	Element/Datum: {Actor} leaves the data to another person.?	Boolean
Q8	Session	{MakesAccessible}	Element/Datum: {Actor} otherwise makes the data accessible.?	Boolean
Q9	Session	{NotGenerallyAccessible}	Element/Datum: the data are not generally accessible.?	Boolean
Q10	Session	{ObtainedByAnotherUnlawfully}	Element/Datum: another person obtained the data through an unlawful act.?	Boolean
Q11	Session	{ProcuresForAnother}	Element/Datum: {Actor} procures the data for another person.?	Boolean
Q12	Session	{ProcuresForSelf}	Element/Datum: {Actor} procures the data for {Actor}.?	Boolean
Q13	Session	{ProtectedData}	Element/Datum: the data satisfy the Section 202a(2) definition.?	Boolean

FLAGS

SCOPE Paragraphs 1 and 3 live; (2)'s penalty cap struck with the penalty.

INTENT RETAINED (DELIBERATE) The enrichment-or-harm intent is live per the retention criterion: procuring or passing on data is innocuous without it; the intent is the only element separating the offence from ordinary data handling.

LIVE EXEMPTION [LawfulDutyExemption], rule HUD-R81, the §108e(4) pattern: a separate negative leg, the insbesondere illustrations under the general predicate.

TREATMENT §202d is Operomise-tagged.